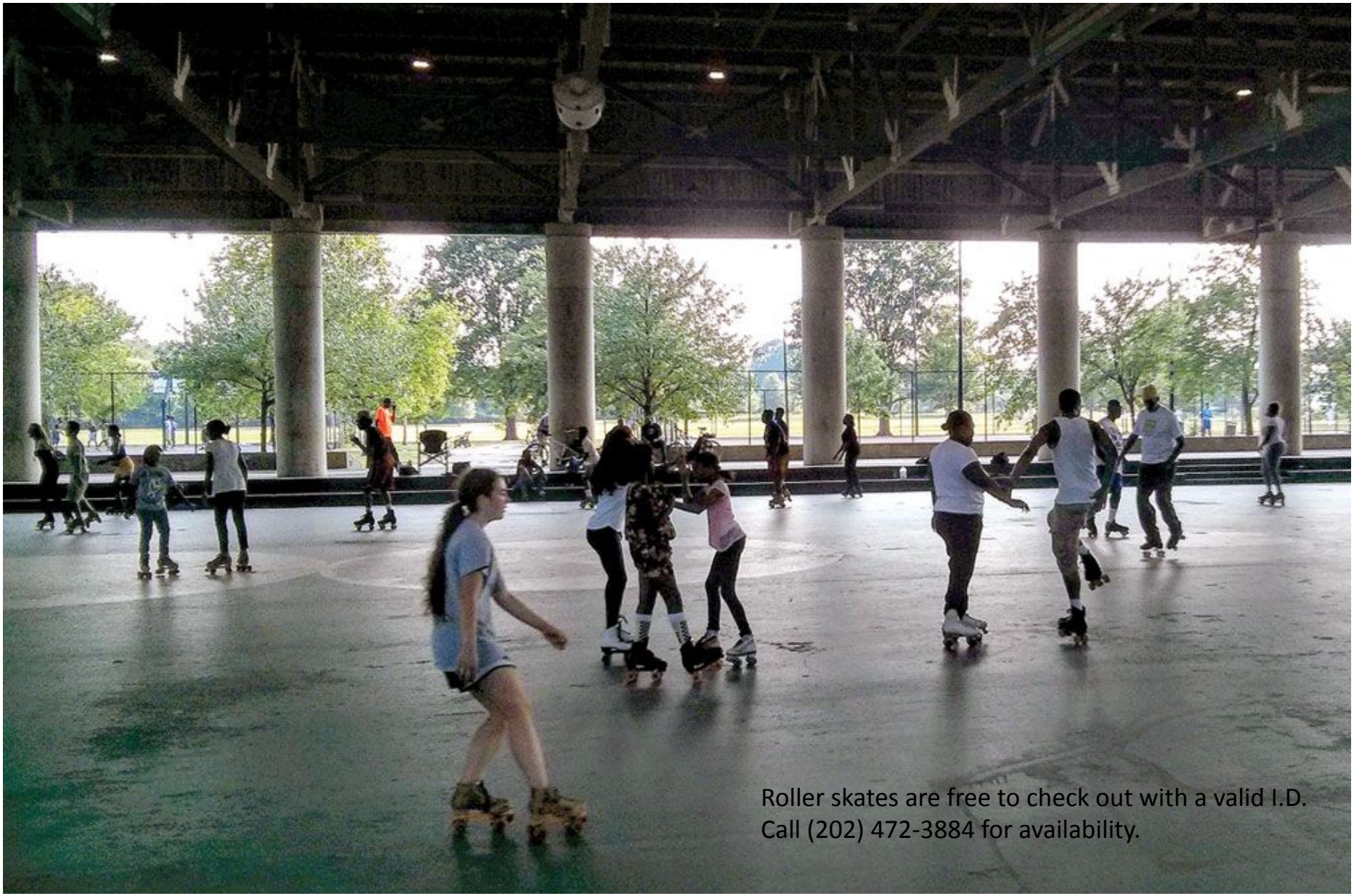
Roller Skating!!!



13: Negligent Homicide, Manslaughter, and “Depraved Heart” Murder

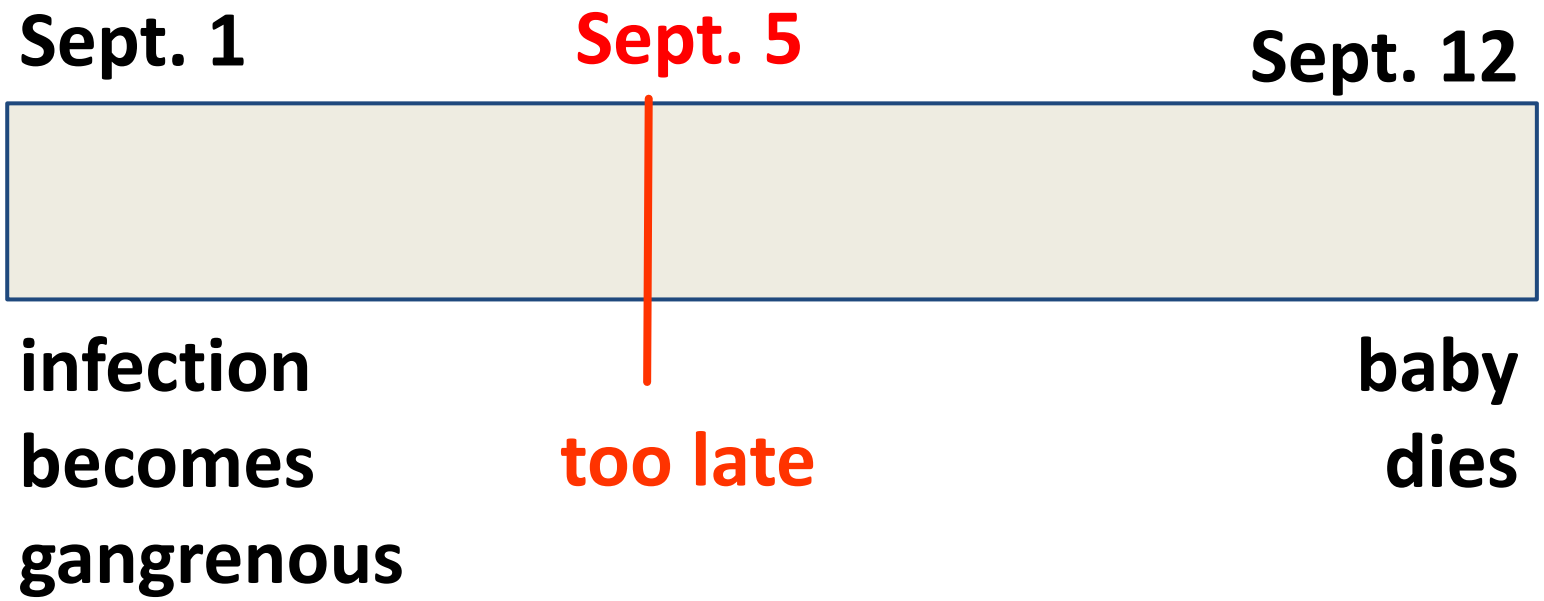
Common Law Homicide

	Intentional (purposefully or knowingly)	**Unintentional** (neither purposefully nor knowingly)	
1st Deg Murder	Premeditated	Felony Murder	**1st Deg Murder**
2nd Deg Murder	Unpremeditated	1. Felony Murder 2. Intent => GBH 3. Gross Recklessness	**2nd Deg Murder**
Voluntary Manslaughter	+ Adequate Provocation + Heat of Passion + Insufficient Cooling Time	1. Gross Negligence/ Recklessness 2. Unlawful act	**Involuntary Manslaughter**

Manslaughter & Negligent Homicide: Common Law vs. MPC

TRADITIONAL COMMON LAW & STATUTES	MPC
<u>Involuntary Manslaughter</u> "recklessness" or sometimes "willful" or "wanton" or "gross" or "criminal" negligence	<u>Manslaughter</u> recklessness
	<u>Negligent Homicide</u> negligence

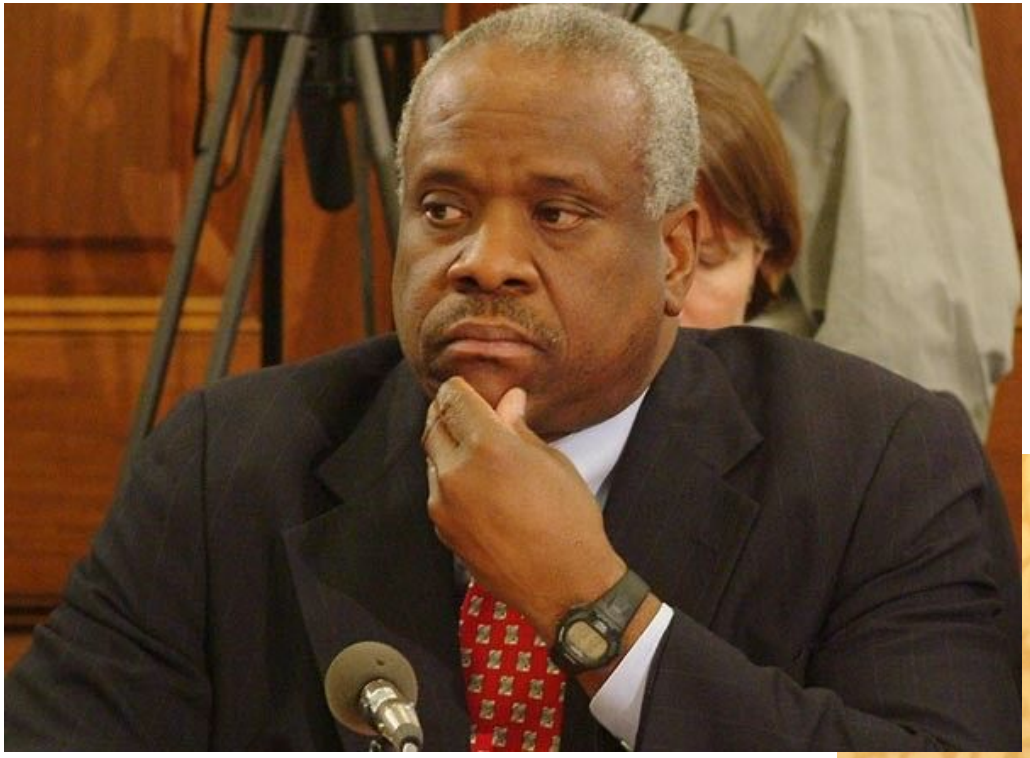
State v. Williams



Criminal Negligence

[A] person acts negligently where he fails to be aware of substantial risk that wrongful act may occur, and where his lack of awareness constitutes gross deviation from standard of care that reasonable man would exercise in same situation.

Class B felonies carry penalties of up to 10 years in prison and fines of up to $20,000.



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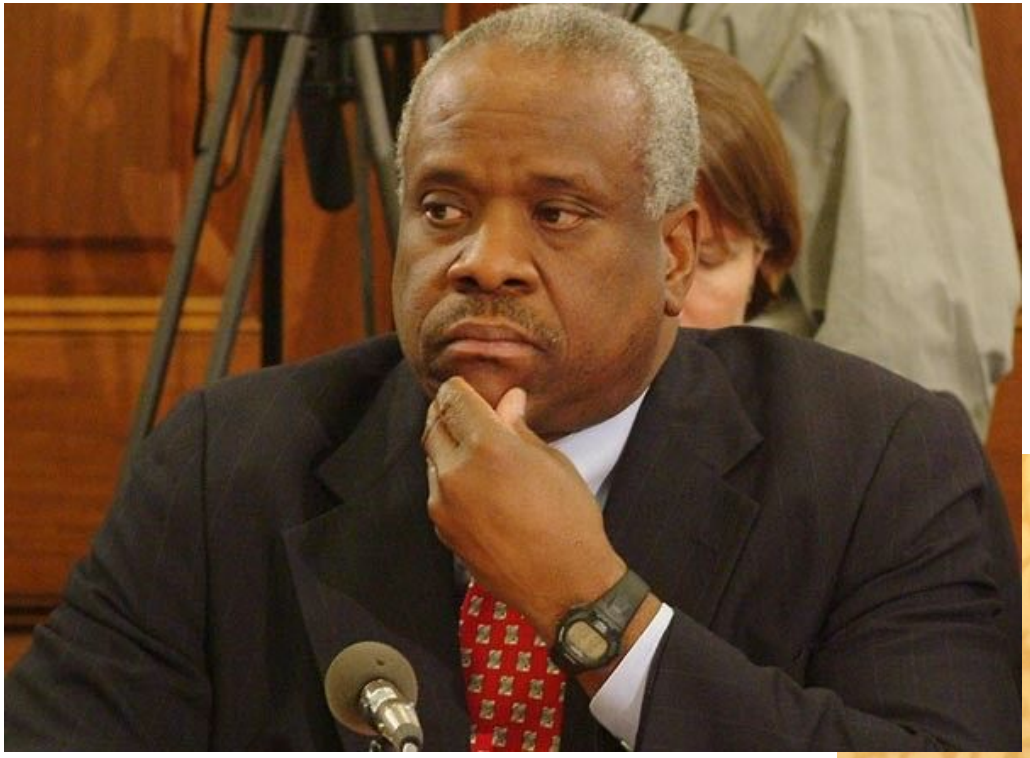
Context on Indian Child Removal

Commonwealth v. Welansky

Criminal Negligence? (Constructive Recklessness)

"[E]ven if a particular defendant is so stupid (or) so heedless [...] that in fact he did not realize the grave danger, he cannot escape the imputation of wanton or reckless conduct in his dangerous act or omission, if an ordinary normal man under the same circumstances would have realized the gravity of the danger. A man may be reckless within the meaning of the law although he himself thought he was careful."



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Vaught: The Debate

Prosecution: Vaught bypassed safeguards — used "override" mode on medication cabinet to withdraw unprescribed drug

Defense: Override mode was routinely used by nurses; this was a tragic mistake, not a crime

Professional response: Nursing and medical organizations condemned prosecution — argued it creates "culture of fear" discouraging error reporting

Compare to *Williams*: Both failed to perceive deadly risk; both claimed good faith. Equally culpable?

Manslaughter
v.
Murder

MPC § 210.2 — Murder

Criminal homicide constitutes murder when:

(b) it is committed **recklessly under circumstances manifesting extreme indifference to the value of human life.**

Commentary: Whether recklessness is "so extreme that it demonstrates similar indifference" to purpose or knowledge **"must be left directly to the trier of fact."**

Why Delegate to the Finder of Fact?

> "Murder is an emotive label, no matter how much legalese it is couched in. It is not a binary category. It is not a single or simple descriptor. Murder is complicated."
>
> — Emma Southon, *A Fatal Thing Happened on the Way to the Forum* (2021)

If murder is an interpretation shaped by social context, does the MPC's delegation to the jury make institutional sense?

Judicial Gatekeeping vs. Jury Authority

Recall *People v. Warner-Lambert Co.* (Chapter 8):

- Six workers killed in factory explosion from ambient magnesium stearate dust
- NY Court of Appeals dismissed — specific ignition mechanism "not foreseeable"

Under MPC: Both causation *and* gradation fall to the jury

- Did the conduct cause the deaths?
- If so: ordinary recklessness (manslaughter) or extreme recklessness (murder)?

When judges dismiss on sufficiency grounds, they remove the community's voice from cases involving powerful institutional actors.

Beckwitt v. State (Md. 2022)

The arrangement:

- Askia Khafra (21) dug tunnels under Beckwitt's home to repay a $10,000 investment
- Beckwitt building underground bunker (feared nuclear war with North Korea)
- Khafra: blindfolded during transport, confined to basement, no shower, used bucket for toilet
- Communicated only via Google Hangouts

Beckwitt: The Fire

- **2:32 a.m.:** Khafra messages — “no power down here”
- **2:37 a.m.:** Smoke in basement
- **9:00 a.m.:** Beckwitt wakes, sees messages
- **9:27 a.m.:** Beckwitt writes back, goes back to sleep
- **~4:00 p.m.:** Carbon monoxide detector beeping — Beckwitt waits 20–30 minutes
- Explosion → fire → **Khafra dies**

Home was a “hoarder’s home” — firefighters took 1.5–2 minutes to traverse a short distance

Beckwitt: The Holding

Jury convicted Beckwitt of both:

- Second-degree depraved heart murder
- Involuntary manslaughter

Maryland Court of Appeals:

- Manslaughter: AFFIRMED — conduct was "gross departure" from ordinary care, "wanton and reckless disregard for Khafra's life"
- Murder: REVERSED — conduct was not "reasonably likely, if not certain, to cause death"

The line: Reprehensible indifference to risk ≠ conduct that makes death a *likely* result

III. DRUNK DRIVING HOMICIDE: A STUDY IN LEGISLATIVE DESIGN

The Scale of the Problem

- Drunk driving kills **~12,000–13,000 people** annually in the U.S.
- Same conduct can result in **probation** (one state) or **life imprisonment** (another)

States have adopted **four distinct approaches** — reflecting deep disagreement about where drunk driving homicide falls on the culpability spectrum.

Approach 1: Murder

California (*People v. Watson*, 1981):

- Drunk driver, BAC .23, driving 84 mph → killed two people
- Held: can be charged with **second-degree murder** based on "implied malice"

The Watson Advisement (Cal. Veh. Code § 23593):

- Every DUI convictee warned that DUI is "extremely dangerous to human life"
- Subsequent DUI death → documented knowledge of risk → easier to prove murder
- Penalty: **15 years to life**

Approach 2: Standalone Vehicular Homicide Statutes

Majority approach: Purpose-built offenses for DUI deaths

Mental state varies widely:

- **Strict liability end:** TX, CT, NJ — prove intoxication + causation, nothing more
- **Recklessness end:** VA — must prove "gross, wanton and culpable" disregard for life

Penalty ranges:

- Texas: 2–20 years (up to 5–99 with priors or multiple deaths, as of Sept. 2025)
- Florida: 4–15 years (up to 30 if driver fled)
- Tennessee: 8–30 years (**100% service**, no parole, as of 2024)

Approaches 3 & 4

Approach 3: General Manslaughter

- States without standalone statutes (e.g., Arizona)
- AZ: vehicle as "dangerous instrument" → enhanced to 7–21 years

Approach 4: Aggravated DUI

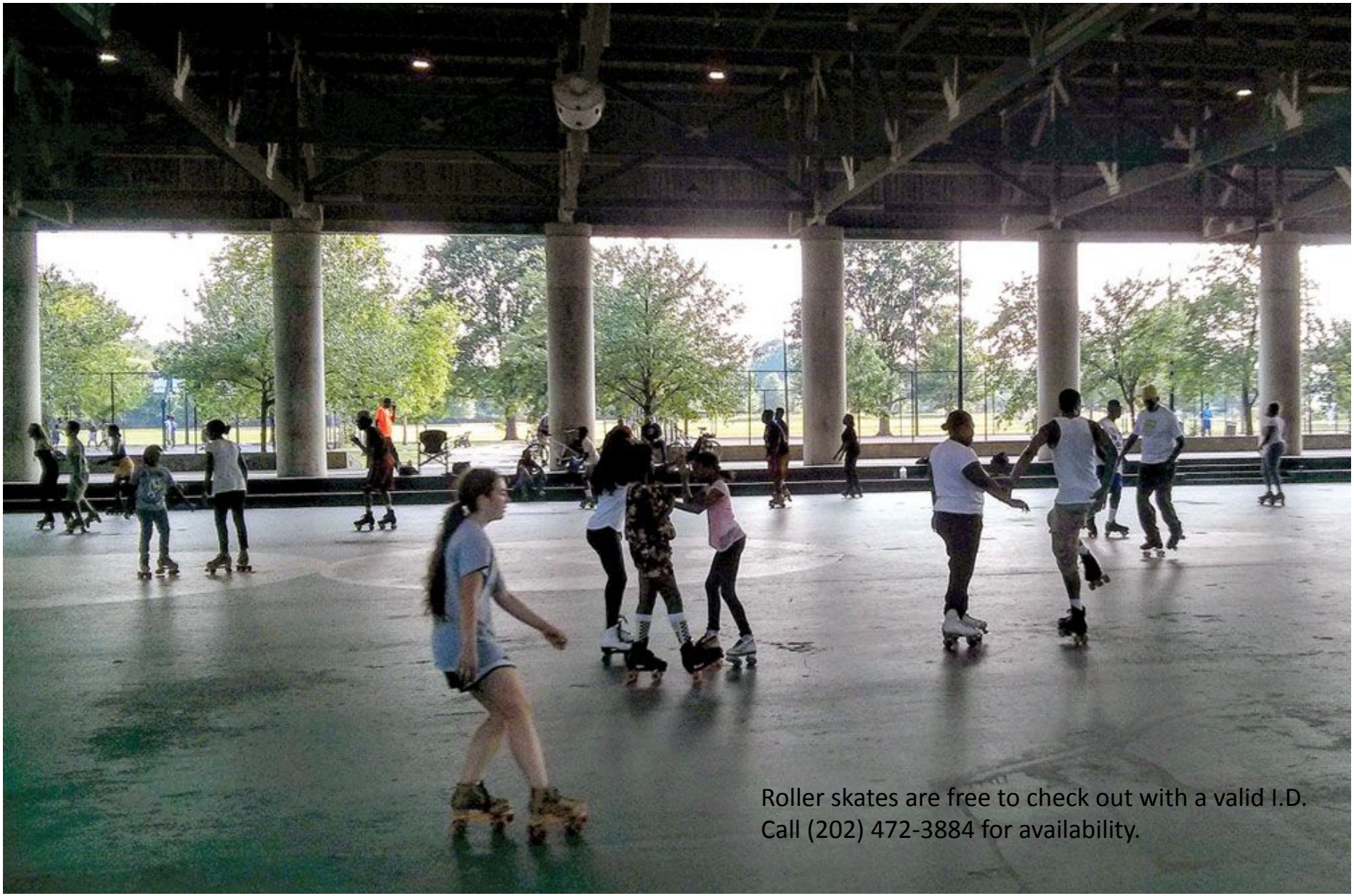
- DUI death treated as enhanced DUI, not homicide
- **Nevada:** 3+ prior DUIs (no look-back limit) + death → **25 years or life**

MPC Intoxication Rule

§ 2.08(2): Voluntary intoxication does not negate recklessness

> "When recklessness establishes an element of the offense, if the actor, due to self-induced intoxication, is unaware of a risk of which he would have been aware had he been sober, such unawareness is immaterial."

Implication: Drunk driver's claim that intoxication prevented awareness of risk = no defense

But: If we presume all drunk drivers are "aware" of risk, what happens to the distinction between manslaughter and murder?

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